

General Scheme

Private Wires Bill 2025 (Amendments to Electricity Regulation Act 1999)

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Head 1 – Long title

Long Title of the Act

Provide that:

This Act may be cited as the Private Wires Act 2026, under which the Electricity Regulation Act 1999 will be amended to provide for private wires whereby private developers will be able to own and operate electricity lines in finite circumstances and to give the Minister for Climate, Energy and the Environment and the Commission for Regulation of Utilities powers to regulate, licence and monitor the implementation of private wires.

Explanatory Note:

To provide for the long title of this Act

Head 2 – Short title**To provide that:**

This Act may be cited as the Private Wires Act, 2026.

Explanatory Note:

To provide for a short title by which the Act may generally be referred.

Head 3 - Definitions

To provide that Section 2 of the 1999 Act, is amended by the insertion of a 'private wire' definition and amendment to the 'electricity undertaking' definition, and the insertion of a 'internal collector cable systems' definition:

'private wire' means an electric line owned by a person or entity which is used or is to be used to carry electricity for the purpose of supply and the construction of which line is permitted under Section 37A or licenced under Section 14.

'electricity undertaking' means any person engaged in generation, transmission, distribution, aggregation, demand response, energy storage, supply or purchase of electricity, and who is responsible for the commercial, technical or maintenance tasks related to those functions, including a holder of a licence or authorisation under the 1999 Act or a person who has been granted a permit under Section 37 of the 1927 Act, and participants in the private wires scheme but does not include any other final customers.

'internal collector cable systems' refer to the collector system of cables used to consolidate the power generated by individual units of a single generation project for the purpose of export via a single grid connection point.

Explanatory Note:

To provide for relevant definitions.

The definition of private wires will be inserted into the 1999 Act. The definition of Private Wires will provide for the distinction of this infrastructure from that which makes up a transmission system or a distribution system as set out under the definitions of 'transmission' and 'distribution' in Section 2 of the 1999 Act. The intention is for this definition to also distinguish private wires from 'transmission system operator' and 'distribution system operator' as defined in the 1999 Act and the Directive 2019/944 (the Internal Market for Electricity Directive).

The definition of electricity undertaking will also be amended in the 1999 Act to clarify that private wires fall outside the scope of the definition of 'final customer.' This is to allow for private wires to be included in the Commission for Regulation of Utilities (CRU) Levy Order under Schedule I of the 1999 Act and to resolve concerns around the issue of supply to final customers.

The definition of "internal collector cable systems" is introduced in order to provide clarity on previously referred to "internal networks" outlined in the approved policy statement. Wind and solar farms often have extensive networks of cables to collect generated electricity from individual wind turbines or solar panels and bring them to a central point where the farm connects to the national grid. These internal systems of collector cables should be appropriately regulated and overseen by the CRU as there is currently no publicly adopted standards or mechanisms to inspect such systems. The change from "internal networks" to "internal collector cable systems" is made to ensure that the term private networks and internal networks are not conflated. It is outlined in the policy statement that these internal collector cables will be legislated for alongside private wires.

Head 4 – Additional function of the Commission regarding electrical safety.

To provide that Section 9 of the 1999 Act, is amended by the insertion of a Section 9(1)(ee):

to regulate the activities of holders of private wire licences under section 14(1)(p) of the 1999 Act and holders of private wire permissions under Section 37A of the 1999 Act with respect to safety.

Explanatory Note:

This amends the 1999 Act to include the function of regulating private wires as part of the CRU's role. Under the existing legislative framework, ESB Networks have a monopoly on distribution grid development and ownership including sole oversight of the electrical safety and technical standards to which the grid is built. EirGrid oversees the operation of the national transmission grid.

Expanding ownership of electricity lines to private developers in the case of private wires requires the CRU to assume oversight of the electrical safety of private wires. It is intended that the technical and safety management of the national grid – i.e. the transmission and distribution network – will remain in the oversight of ESB Networks and EirGrid; the CRU's role will solely pertain to private wires.

The reference to a licence under Section 14 is set out in Head 6.

Head 5 – A safety regime for Private Wires

To provide that Section 9C of the 1999 Act, is amended by the insertion of a Section 9CA:

Where:

- (a) The Commission shall, in consultation with the Minister, make regulations relating to electrical safety of private wires.
- (b) The Commission shall consult the Board and EirGrid in preparation of regulations to ensure private wires are functionally compliant with the electrical, technical and safety standards of the national grid.
- (c) The Commission shall specify procedures regarding the installation, operation, maintenance and decommissioning of private wires.
- (d) The Commission shall make regulations to designate procedures for the inspection of private wires to evaluate compliance with any regulations made regarding safety standards set by the Commission.
- (e) The Commission may appoint a person to act as an electricity safety officer for the purposes of inspecting and enforcing the safety standards of private wires.

Explanatory Note:

This head provides that the CRU will have the responsibility to set out private wire's safety standards in regulations.

It includes the requirement that the CRU will consult with ESB Networks and EirGrid regarding functional specifications of private wires. The CRU will also have the power to make regulations around the inspection of private wires and compliance with the standards set by the organisation. This should also include reference to emergency and incident response particularly in the case of risks to public safety. The section specifies that all private wires will be built to the same safety standards as the national grid.

Subsection (e) gives the CRU powers to appoint an electrical safety officer to enforce the private wires safety regime set out in the above regulations. This person may or may not be a member of the CRU itself.

Head 6 – Licencing of private wires

To provide that Section 14 of the 1999 Act, is amended by the insertion of a Section 14(1)(p):

To discharge the functions of a private wire (in line with Head 7)

Explanatory Note:

It will be required that some developers or private entities seeking to build a private wire will need to apply to the CRU for a private wire licence. Head 7 specifies in which cases applications need to be made to the CRU for a private wire licence and in which cases a permission for a private wire is sufficient. For clarity, a private wires licence is a licence to construct a single asset and is not to be construed as a private wires operator licence.

The implication here is that, in some cases, private wires may be transporting large volumes of high voltage electricity over significant distances, for example, from a wind farm to a large energy user. In this case there would be in the public interest to more stringently regulate the safety and technical standards of the private wires and to allow for a licence fee for the CRU to recoup the admin costs required to evaluate applications. Introducing a private wires licence for these large-scale projects is preferable because the existing licence regime under the 1999 Act has provisions of application fees.

In the case of on street electric vehicle (EV) charging, it is anticipated that a licence will not be required to build a small-scale private wire, but rather an authorisation sought from the relevant local authority including potentially a road opening licence (as in the case of on-street EV charging that crosses a pathway).

The specific circumstances that require either a) a licence from CRU or b) a less stringent permissions are specified in Head 7.

Head 7 – Insertion of section on Private Wires

To provide that Section 37 of the 1999 Act, is amended by the insertion of:

Section 37A – Private Wires

1. To provide that the Commission can grant or refuse to grant a Private Wires licence to construct a private wire not connected to the transmission or distribution systems when initially constructed to facilitate the supply of electricity in the following instances:
 - a. A new source of generation, or battery storage, connecting directly to a customer or another electricity undertaking.
2. To provide that the Commission can grant or refuse to grant a Private Wires permission to construct a private wire not connected to the transmission or distribution systems when initially constructed to facilitate the supply of electricity in the following instances:
 - a. Where more than one generation technology or electricity storage technology intend to share a single grid connection including if there are multiple legal entities involved.
 - b. To allow a customer self-supplying electricity to generate electricity onsite and supply it to a separate customer on a contiguous premises.
3. To provide local authorities with the powers to authorise the running of electricity lines in public or shared spaces to enable electric vehicle charging for domestic premises. Local authorities shall notify the Board of the existence of such wires and shall update the Commission on new or additional private wires on an annual basis.
4. The Commission will not grant a licence or permission unless an application sufficiently demonstrates that:
 - a. That the private wire will promote the use of renewable, sustainable or alternative forms of energy taking into consideration project-level security of supply concerns.
 - b. That the private wire will not interfere with the operation of the national grid and national security of supply.
 - c. That a private wire will not interfere with any planned expansion or reinforcement of the national grid.
5. A licence or a permission to construct a private wire under subsection 1 and subsection 2 of this section will require the licence holder or permission holder to comply with safety standards that will be set out by the Commission under Section 9CA.
6. A licence to construct a private wire under this subsection 1 of this section will require the licence holder to comply with technical standards that shall be set out by the Commission including those which may be necessary to ensure that private wires are compatible with the transmission or distribution system, to such extent as the Commission may specify in the licence.
7. Private wires are exempt from the definition of transmission and distribution and therefore holders of a private wires licence or permission are exempt from the obligations of transmission system operator and distribution system operator.
8. The Commission may for the purposes of making a levy order in under Schedule 1 paragraph 16(a), designate private wires as a class of electricity undertaking.
9. In assessing licence applications under subsection 1 and permission applications under subsection 2, the Commission may consult with the Board and EirGrid for the purposes of:
 - a. Determining whether the licence is compliant with paragraphs (b) and (c) of subsection 3 of this section.

- b. Incorporating private wires into any electricity system mapping including programmes such as Dial Before You Dig.
- 10. A licence holder to construct a private wire shall not be granted any wayleave or compulsory purchase order rights.
- 11. The Commission may grant the Board a limited 'step in' right to take charge of a private wire for the purpose of asset decommissioning and removal in the interest of public safety where the original private wire licence holder is unable to decommission or remove the wire.
- 12. The Commission may, on application of the Board, grant the Board a limited 'step in' right to take ownership of a private wire where it is viewed that the maintenance and operation of the wire by the Board would be beneficial to the operation and development of the national grid.

Explanatory Note:

There are three categories of private wires to be regulated, for which provisions are provided for in this section:

A) licence holders

This includes private wires to be regulated under use case 1 of the policy statement. These are private wires which will be licenced under Head 6 and as such will be subject to a licence fee and tariffs. All licenced private wires must be built to the same electrical, technical and safety standards as the national grid (subsections 5 and 6).

B) permission holders

This includes private wires to be regulated under use case 2 and use case 4 of the policy statement which require comparatively less regulatory oversight as the works are much more limited. These cases should be assessed for a private wire permission under subsection 2. While private wire permissions will be required to be built to the same safety standards as the national grid (subsection 5), they constitute less extensive works so more lenient conditions may be applied to the technical standards.

C) authorisations under local authorities

In the case of EV charging, it is more appropriate for the private wire developer to apply directly to the relevant local authority for a road opening licence as mechanisms such as the Kerbo solution may require transport over third party lands and digging into footpaths. The CRU and ESB Networks should be notified of any works to centralise information of where electrical cables are laid in part to facilitate the Dial Before You Dig programme currently managed by ESB Networks (subsection 9). Therefore, local authorities will be required to provide ESB Networks with locations of on street EV charging, as well as provide the CRU with an annual report on the uptake of on street charging.

Subsection 4 is to ensure that the national grid is protected as private wires in some cases may require extensive works. Planned development and reinforcement of the grid (Subsection 4 (c)) refers to development committed to in the agreed upon Price Reviews. Furthermore, it is important that the acceleration of the deployment of renewable, sustainable and alternative forms of energy – as defined in the 1999 Act – is highlighted, while also taking into considerations regarding security of supply as consistent with the guiding principles of the policy statement, other government policy including industrial policy, and the national climate objective.

These private wires must also be strictly regulated by technical and safety standards (subsection 5 and 6) – ideally those already in place by ESB Networks – and be capable of being subsumed by ESB Networks in the case of project decommissioning, bankruptcy of the private wire developer or other such event (subsection 11 and 12).

Subsection 7 is to ensure that there are no obligations of private wires licence holders to comply with TSO and DSO requirements under EU law, such as unbundling of supply and generation.

Subsection 8 is intended to provide clarity to the CRU that private wires can have distinct charging methodology applied under the Levy Order of Schedule I of the 1999 Act.

Subsection 9 is to ensure the current TSO and DSO (EirGrid and ESB Networks respectively) are appropriately consulted in future private wire installations to limit negative impacts on the development of the national grid. This is also to ensure that private wires can be captured under national mapping programs such as Dial Before You Dig which enhances public safety.

Subsection 10 is to prohibit private wires operators from receiving statutory wayleave and CPO rights as stated in the policy statement.

Subsection 11 is to provide for a limited step in right for ESB Networks if a private wire needs to be decommissioned and removed in the interest of public safety where the original company is unable to provide this service such as in the case of company bankruptcy, wire abandonment or other issue of last resort.

Subsection 12 is to provide a limited step in right for ESB Networks, allowing ESB Networks to take over as owner and operator of a private wires where the wire is deemed by both the system operators and the CRU to be beneficial to the build out of the national grid. This right will only be enforced where there is consent from the CRU, ESB Networks and EirGrid and may be completed at distribution or transmission level. Any transfer of ownership may be subject to compensation as agreed between the system operator and the private wire operator.

Head 8 – Provision to ensure the reviewing of private wires legislation

To provide that the following provision is inserted:

The Minister shall, having consulted with the Commission, not later than ten years after this Act comes into force, carry out a review thereof.

Explanatory Note:

The policy statement and associated Government decision from which this General Scheme has arisen makes a commitment to “continue to monitor industry developments e.g. the emerging concept of green energy parks to identify any future need for further liberalisation [of the legislation].” This initial legislated reform in this Scheme is intended to allow for four unique circumstances of private wires, as elucidated in the policy statement, but recognises that there may be further circumstances under which private wires could be build that would aid in the achievement of Ireland’s renewable energy and decarbonisation targets. For example, exploring a more flexible legislative regime for green energy industrial parks or renewable energy communities.

Due to this evolving nature of the electricity grid, it would be ideal to have a review mechanism built into the legislation to allow for revision at least every 10 years, or earlier should the need arise. This review power should be conferred on the Minister of Climate, Energy and the Environment as the authority over energy policy and the ERA; however, the Minister should be required to consult with the CRU who will likely be responsible for overseeing and implementing any regulatory reform.

Head 9 – A safety regime for Internal Collector Cable Systems

To provide that Section 9C of the 1999 Act, is amended by the insertion of a Section 9CB:

Where:

- (a) The Commission shall make regulations relating to electrical safety and technical standards of internal collector cable systems.
- (b) The Commission shall consult the Board and EirGrid in preparation of regulations to ensure internal collector cable systems are functionally compliant with the electrical, technical and safety standards of the national grid.

Explanatory Note:

Wind and solar farms often have extensive networks of cables to collect generated electricity from individual wind turbines or solar panels and bring them to a central point where the farm connects to the national grid. These wires can be lengthy, and in some cases cross roads and third party owned land. However, there are no publicly adopted standards or mechanisms to inspect such internal collector cable systems.

Under the policy statement, the CRU should be given powers to adopt technical and safety standards for the design and safe operation for these systems, heretofore known as internal collector cable systems. These standards may be different than those required for private wires as internal collector cable systems often operate at lower voltages. As such, the safety and technical standards for internal collector cable systems should be developed separately to the private wires safety regime proposed under Head 5.

Head 10 – Commencement Date for Head 9

To provide that the provision under Head 9 shall come into effect at a later date than the rest of the Bill.

Explanatory Note:

The intention of this Head is to allow for the private wires regime to be set up in the first instance following the enactment of the Bill. It is intended that the regime for internal collector cable systems will follow this.

Head 11 – Funding of CRU in the development of a Private Wires regime

To provide that the Minister for Climate, Energy and the Environment may provide such assistance, including financial assistance to the Commission as the Minister consider appropriate in relation to the development of a Private Wires regime.

Any assistance provided by the Minister shall be subject to conditions, if any, determined by the Minister.

Explanatory Note:

The Commission are funded through levy orders placed on energy undertakings that they regulate. The regulator will be unable to receive funding for the private wires function until there are participants in the regime. This provision will provide for the ability of the Minister to provide financial assistance to the CRU to develop this regime.